

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201601528	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/25/2016 1:00 PM	Location of Incident: Fulton Street subway station A/C line platform	18 Mo. SOL 8/25/2017	Precinct: 01
Date/Time CV Reported Thu, 02/25/2016 2:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/25/2016 2:23 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Cruz	26460	945626	TB DT30

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Cruz	Discourtesy: Police Officer Jason Cruz spoke discourteously to § 87(2)(b)	A . Substantiated

Case Summary

On February 25, 2016, at approximately 1:00 p.m., § 87(2)(b) was on the Fulton Street subway station platform of the A/C line in Manhattan. § 87(2)(b) was about to sit on a steel enclosure that covered an air-conditioning unit for an Omega Booth, the security booth in which NYPD officers sit inside of to monitor subway station platforms, when an unidentified man, who § 87(2)(b) did not know, informed him that he could not sit there. After § 87(2)(b) took that man's advice, PO Jason Cruz from Transit Bureau District 30 opened the door to the Omega Booth and spoke with § 87(2)(b). PO Cruz allegedly stated to § 87(2)(b) "you can't fuck sit there," "some people have no fucking common sense," and "you have no fucking common sense, idiot" (**Allegation A**). After the conversation ended, § 87(2)(b) boarded an uptown train and left the scene. No summonses or arrests resulted from this incident.

There is no video footage pertaining to this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of March 15, 2016, the Notice of Claim inquiry with the City of New York was still pending.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 02).
- This is the fourth CCRB complaint filed against PO Cruz, who has a total of five allegations in his CCRB history and who has been a member of the service for eight years. There are no prior substantiated allegations against PO Cruz.

Findings and Recommendations

Allegation A -Discourtesy: Police Officer Jason Cruz spoke discourteously to § 87(2)(b)

It is undisputed that PO Cruz and § 87(2)(b) engaged in a discussion about the possibility of § 87(2)(b) sitting on a steel enclosure behind the Omega Booth. It is also undisputed that the unidentified man informed § 87(2)(b) that he was not allowed to sit on the steel enclosure.

§ 87(2)(b) alleged that the initial statement PO Cruz's made to him was, "You can't fucking sit there" (Board Review 03). When § 87(2)(b) told PO Cruz that he no longer planned to sit on the steel enclosure, PO Cruz allegedly said, "Some people have no fucking common sense." § 87(2)(b) told PO Cruz that it was not about common sense and in the process, he called PO Cruz "dude." PO Cruz told § 87(2)(b) not to call him dude. When § 87(2)(b) said that he no longer wished to speak with PO Cruz, PO Cruz allegedly replied, "You have no fucking common sense, idiot."

PO Cruz said that upon opening the door of the Omega booth, and finding § 87(2)(b) arguing with the unidentified man, he informed § 87(2)(b) that he was the one that said no one could sit on the steel enclosure. PO Cruz said that in response, the unidentified man told him, "Some people just don't get." PO Cruz replied to the unidentified man with, "common sense is not common to some." PO Cruz acknowledged telling § 87(2)(b) not to call him dude. PO Cruz denied using profanity during this incident.

§ 87(2)(b) called the CCRB to file this complaint immediately after it happened and he appeared at the CCRB for his interview that same afternoon. § 87(2)(g)

NYPD Patrol Guide, Section 203-09 states that officers must be courteous and respectful while interacting with the public (Board Review 05).

§ 87(2)(g)

It is therefore recommended that Allegation A be closed as **substantiated**.

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date